

26AVCV00447 26AVCV00447

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Case Number: 26AVCV00447 Hearing Date: September 17, 2026 Dept: A15

LOPEZ v. GENERAL MOTORS LLC

Plaintiff's

Demurrer to Answer

Plaintiff Breanna Lynn Lopez's demurrer to the answer of defendant General Motors LLC (GM) is scheduled for hearing on September 17, 2026. The Court has considered the complaint, answer, notice of demurrer, supporting memorandum, and declaration of Astrid Souto with exhibits. Through September 16, 2026, the file contains no opposition or reply. The Court tentatively rules as follows.

DISPOSITION

1. The demurrer is

SUSTAINED WITH LEAVE TO AMEND as to the third, fourth, sixth, eighth, ninth, tenth, eleventh, thirteenth, fourteenth, fifteenth, seventeenth, and twenty-first affirmative defenses.

2. The demurrer is

OVERRULED as to the second, fifth, seventh, twelfth, sixteenth, eighteenth, nineteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses, subject to the scope explained below. This ruling determines pleading sufficiency, not the truth or ultimate merits of those defenses.

3. If this tentative

ruling is adopted, GM may file and serve an amended answer within 20 days after

service of notice of the Court's ruling. The first affirmative defense is not challenged. GM's general denial remains unaffected.

4. Plaintiff shall

give notice of the ruling after it is adopted.

REASONS

A. Allegations and issues presented

The complaint alleges that plaintiff acquired a new 2025 Chevrolet Traverse on May 24, 2025, with express and implied warranties. The vehicle allegedly had electrical defects, including failure to start and failure to recognize the key fob. (Complaint, ¶¶ 6-9, 28.) Plaintiff alleges that she repeatedly presented the vehicle for repairs, but GM failed to conform it to the warranties after a reasonable number of opportunities. She also alleges that GM failed to provide restitution after a December 3, 2025, demand. (Complaint, ¶¶ 16-18, 23, 29-35.) She seeks restitution and damages, including incidental and consequential damages, and civil penalties for allegedly willful noncompliance with the Song-Beverly Consumer Warranty Act. (Complaint, ¶¶ 35-37, 46-48, 63.)

GM's answer contains a general denial and 24 separately labeled affirmative defenses. Plaintiff challenges defenses two through twenty-four, principally for failure to plead supporting facts or uncertainty. She separately challenges contributory negligence, the statutory specificity of the limitations defense, and the legal availability of the qualified dispute-resolution defense. (Answer, pp. 1-7; Demurrer, p. 2; Notice of Demurrer, p. 2.)

B. Governing pleading standard

A plaintiff may demur to an answer that fails to state facts sufficient to constitute a defense or is uncertain. (Code Civ. Proc., § 430.20, subds. (a), (b).) An answer may contain denials and new matter constituting a defense. (Code Civ. Proc., § 431.30, subd. (b).) New matter must be supported by ultimate facts; a defense consisting only of legal conclusions is insufficient. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384 (Nakashima).) Ultimate facts are sufficient without evidentiary detail, but the distinction does not

permit bare conclusions. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550-551 & fn. 5.)

The fact-pleading requirement remains applicable. The Court of Appeal has held that conclusory affirmative defenses, including waiver and laches, cannot withstand a demurrer or judgment on the pleadings. (Westly v. California Public Employees' Retirement System Bd. of Administration (2003) 105 Cal.App.4th 1095, 1118.) Discovery may develop a defense's evidentiary support, but it does not dispense with the requirement to plead its ultimate facts.

An allegation controverting an element of plaintiff's claim, however, is a denial rather than new matter. (Nakashima, supra, 231 Cal.App.3d at p. 383.) Because the complaint is unverified, GM may deny its allegations generally. (Code Civ. Proc., § 431.30, subd. (d).) Labeling a denial an affirmative defense does not create a requirement to plead an independent factual avoidance. The Court applies these distinctions to each challenged defense rather than treating all 23 defenses alike.

C. Defenses requiring amendment

Third, sixth, fourteenth, and fifteenth defenses. These defenses invoke mitigation, laches, estoppel, and waiver without identifying the conduct supporting them. The third does not identify a reasonable measure plaintiff failed to take or the resulting avoidable loss. The sixth asserts unreasonable delay and prejudice without describing either. The fourteenth identifies no conduct supporting estoppel, and the fifteenth identifies no relinquishment of a right. (Answer, pp. 2-3, 5.) These are conclusions requiring supporting ultimate facts.

Fourth and seventeenth defenses. The fourth combines negligence, unclean hands, fault, and assumption of risk without identifying the conduct supporting any asserted avoidance. The seventeenth likewise identifies neither the particular risk nor the conduct by which plaintiff allegedly assumed it. (Answer, pp. 2-3, 6.) *Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 829, replaced contributory negligence as a complete bar in negligence actions with comparative negligence; it does not establish that every concept mentioned in the fourth defense is categorically unavailable. The pleading nevertheless lacks supporting facts. Leave to amend permits GM to state any factually and legally supportable defense.

Eighth, ninth,

tenth, and thirteenth defenses. The eighth asserts intervening third party fault and proportional reduction without identifying the conduct or actors involved. The ninth alleges misuse without describing the misuse. The tenth refers to changes or alterations without identifying them. The thirteenth alleges an unintended use without stating what that use was. (Answer, pp. 3-5.)

As affirmative matters offered to bar or reduce recovery, these allegations do not give a factual account of the asserted avoidance. Amendment is required. GM remains free under its general denial to dispute that a covered defect or its own conduct caused plaintiff's claimed loss.

Eleventh

defense. GM alleges that it disclaimed all express and implied warranties but identifies no disclaimer, its terms, or the circumstances making it applicable. (Answer, p. 4.) The Court sustains the factual pleading challenge with leave to amend; it does not decide the enforceability of a disclaimer that has not been identified.

Twenty-first

defense. This defense states only that the implied-warranty claims are barred by Civil Code section 1791.1, subdivision (c). (Answer, p. 7.) That provision addresses the duration of the implied warranty; it is not itself a deadline for filing suit. The answer alleges no facts explaining how the warranty's duration defeats the pleaded claim. Merely naming the statute supplies no intelligible factual defense. Leave to amend is appropriate.

D. Defenses that survive the demurrer

Fifth defense.

Code of Civil Procedure section 458 permits a limitations defense to be pleaded by identifying the applicable statute and subdivision without alleging the supporting facts. (Brown v. World Church (1969) 272 Cal.App.2d 684, 691.) Contrary to plaintiff's blanket objection, GM identifies subdivisions for several listed Code of Civil Procedure provisions. (Answer, p. 3; Memorandum in Support of Demurrer, p. 11.) Its additional reference to California Uniform Commercial Code section 2725 omits a subdivision, and the catchall reference identifies no statute. Those deficiencies do not, by themselves, establish that the entire separately stated defense fails. The Court overrules the pleading challenge without determining which limitations

provision ultimately applies or whether any claim is time barred.

Second,

seventh, twelfth, and twenty-second defenses. These allegations dispute, respectively, whether plaintiff allowed a reasonable opportunity to cure, performed required conditions, suffered damage caused by GM, and received proper repairs. (Answer, pp. 2-4, 7.) They controvert allegations in the complaint and may stand as denials. (Complaint, ¶¶ 15-18, 30-37.) The Court does not construe the reference to consent in the twenty-second defense as an independent waiver of statutory rights.

Sixteenth

defense. Unlike the bare labels discussed above, this defense describes alleged conduct: continued operation despite a known need for repairs, failure to obtain needed repairs, and improper service or maintenance that allegedly caused or aggravated the claimed damage. (Answer, pp. 5-6.) Those allegations provide sufficient ultimate facts to meet the challenge presented. The ruling permits GM to dispute causation and the extent of compensable loss. It does not hold that ordinary continued use alone defeats a warranty claim or that tort comparative fault percentages necessarily govern statutory restitution.

Eighteenth

defense. GM alleges that it maintains a qualified dispute resolution process, gave plaintiff timely written notice of its availability, and that plaintiff did not use it. (Answer, p. 6.) A qualifying program has legal significance for penalties under Civil Code section 1794, subdivision (e)(2), and resort to the process may condition use of the repair presumption under Civil Code section 1793.22, subdivision (c). The defense therefore is not categorically unavailable. The operative presumption is in subdivision (b), subject to subdivision (c), rather than subdivision (e)(1), as the answer states. These provisions do not establish a general bar to this action or to penalties under Civil Code section 1794, subdivision (c).

Nineteenth and

twenty-fourth defenses. These defenses dispute plaintiff's entitlement to civil penalties, including her allegation of willfulness. (Answer, pp. 6-7; Complaint, ¶¶ 35, 63.) A reasonable, good-faith belief that the facts requiring replacement or restitution were absent may negate willfulness. (Kwan v. Mercedes-Benz of North America, Inc. (1994) 23 Cal.App.4th 174, 185-186.) The defenses may stand as denials of the penalty claim; a bare belief that conduct was lawful does not establish

immunity from liability. The twenty-fourth defense's conditional reference to a repurchase offer is not a factual allegation that GM made one, and the Court makes no such finding.

Twentieth

defense. This defense identifies the statutory use reduction under Civil Code section 1793.2, subdivision (d)(2)(C). (Answer, p. 7.) It disputes the amount of recoverable restitution under a specified statutory formula and sufficiently identifies the adjustment sought. The amount and factual basis of any reduction remain to be established.

Twenty-third

defense. GM alleges that plaintiff did not provide the notice required by Civil Code section 1794, subdivision (e)(3). (Answer, p. 7.) That is an identifiable factual contention, although plaintiff alleges a prelitigation demand. (Complaint, ¶ 23.) The conflict cannot be resolved on demurrer. The statutory consequence concerns subdivision (e) penalties. Failure to give that particular notice does not itself eliminate the repair presumption or bar a willfulness penalty under subdivision (c).

The surviving defenses are sufficiently intelligible to identify the matters disputed. Their evidentiary particulars may be developed in discovery. The Court therefore also overrules the uncertainty objections to those defenses. The defects in the other defenses concern omitted facts that GM may be able to supply, warranting leave to amend rather than a determination that those defenses can never apply.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.